



Appeal Decision

Site visit made on 11 August 2026

by Graham Wraight BA(Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 15 September 2026

Appeal Ref: 6011330

Land and buildings to the south of Cowley Lane, Dronfield, S18 7UR

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant outline planning permission.
 - The appeal is made by Lana Beatson against the decision of North East Derbyshire District Council.
 - The application Ref is 25/01050/OL.
 - The development proposed is demolition of existing equestrian buildings and replacement with a new dwelling with matters of appearance, scale and layout (custom and self-build scheme)
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. A new version of the National Planning Policy Framework (the Framework) was published on 17 August 2026 and I have referred to that revised document in my determination of this appeal. I am satisfied that the parts of the Framework most relevant to this appeal have not substantively changed from the previous iteration and therefore I have not sought comments from the main parties. Reference to valued landscapes has been removed from the new Framework and consequently I have not addressed the Council's case in that regard.
3. I have used the description of development given on the decision notice, as it is evident from the submissions made by the appellant that the description was amended during the course of the planning application to reflect the fact that the matters of appearance, scale and layout were ultimately being considered at outline stage. I have made my assessment of the appeal on that basis, with reference to the plans submitted where they refer to matters which are not reserved.

Main Issues

4. The main issues are:
 - (i) Whether the proposal would be inappropriate development in the Green Belt having regard to the Framework and relevant development plan policies;
 - (ii) The effect of the proposal on the purposes of the Green Belt;
 - (iii) The effect of the proposal on the landscape; and
 - (iv) Whether any harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the proposal.

Reasons

Whether inappropriate development

5. Policy GB7 of the Framework sets out categories of development which are not inappropriate in the Green Belt. This includes at GB7e *'the redevelopment of previously developed land (including a material change of use to residential or mixed-use including residential), which would not cause substantial harm to the openness of the Green Belt'*. Policy SS10 of the North East Derbyshire Local Plan 2021 (LP) is not consistent with the new Framework in terms of Green Belt development on previously developed land (PDL). The Framework states at Annex A paragraph 2 that development plan policies (or parts of those policies) which are materially inconsistent with national decision-making policies in the Framework should be given very limited weight. Policy ENV1 of the Dronfield Neighbourhood Plan 2019 (NP) refers directly to the Framework. I have therefore made my assessment of Green Belt matters on the basis of the policies set out in the Framework.
6. The parties disagree as to what extent the appeal site can be considered to be PDL. There is common ground that the area closest to the two stable buildings is PDL and that the land was lawfully developed. Various aerial images provided by the appellant show this land partially enclosed by fencing, with the land around the stables in effect being 'squared off'. At the time of my site visit the fencing had been removed, but the extent of that enclosure is established both on the aerial images and on the plans that have been submitted. The appellant states that the partial enclosure was purely for practical purposes associated with the moving of horses between the stables and the grazing land, but to my mind it can reasonably be taken to be the curtilage of those stable buildings in clear and obvious terms.
7. The land immediately beyond where the previous fencing was is open and undeveloped. It no doubt has a functional and operational link to the stables as part of the wider equestrian use. But it is pertinent that the Framework draws a limit on whether a site was previously developed land by reference to the curtilage of the building, as opposed to simply allowing for the inclusion of any area of land around a building no matter how large or small. It is not certain that the polytunnel, hay store and glasshouse are on land that was lawfully developed, but irrespective of this they are physically and visually distinct from the stable buildings and have their own separate curtilage which is both physically defined on the site and on the plans. It does not follow that all intervening land between their curtilage and that of the stables must be PDL when characteristically it does not appear as such and when there is no built development on that land.
8. The proposed dwelling itself would be located on the agreed area of PDL, but its garden would not. With regard to that area of land, the appellant seeks to rely on what is now Policy GB7f.iii of the Framework which refers to *'material changes in the use of land (such as changes of use for outdoor sport or recreation, or for cemeteries and burial grounds)'*. However, caselaw¹ has established that residential uses do not fall within this exception, and that the category is not an open ended one.
9. The appeal site therefore consists partly of PDL and partly of non PDL. The area which is not PDL is essential to provide the outdoor amenity space necessary to

¹ RB of Kingston upon Thames v SSLUHC [2023] EWHC 2055 (Admin)

provide acceptable living conditions for the future occupants of the proposed dwelling and it could not be severed or excluded whilst at the same time providing an acceptable scheme. It is logical to require that all of the appeal site must be PDL to qualify for the exception set out under Policy GB7e of the Framework, and that requirement is not met. The proposal is therefore inappropriate development in the Green Belt.

10. There are representations before me from both parties with respect to whether the proposal would cause substantial harm to the openness of the Green Belt. There would be harm to openness, but substantial harm is a high threshold and even on comparison of the proposed dwelling solely with the two stable buildings that exist on the area of PDL where the proposed dwelling itself would be constructed, I do not consider that this threshold is exceeded. Nonetheless, the Framework is clear that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances as per Policy GB6. I shall return to this in the planning balance.
11. My attention has been drawn to another dwelling² which has been permitted by the Council close to the appeal site. However, having assessed the proposal and undertaken a site visit, the Council considered that the entirety of that site constituted PDL. Having considered the proposal that is before me on its own merits, that is not the conclusion I have come to in this appeal case.
12. For these reasons, I find that the proposed development would be inappropriate development in the Green Belt.

Green Belt purposes

13. The proposal would not conflict with purposes a, b or d of Policy GB2 of the Framework. There would be no fundamental conflict with purpose GB2e. With regard to GB2c there would be a degree of encroachment into the countryside because the garden area beyond the PDL would bring the land into residential use with likely enclosure and domestic paraphernalia, but this would be only a minor encroachment. This would in effect be cancelled out should the polytunnel, hay store and glasshouse prove to be lawful and were removed as proposed.

Landscape

14. The appeal site is within an Area of Multiple Environmental Sensitivity (AMES) as set out in the LP. It is located within the Wooded Hills and Valleys landscape type set out in the Nottinghamshire, Derbyshire and Yorkshire Coalfield Character Area 38. The key characteristics of this character area include broadly undulating topography, the presence of woodlands and sparsely scattered settlement of farmstead and hamlets. The wider landscape that can be seen from the appeal site appears consistent with those characteristics.
15. The proposed dwelling would have an appearance akin to a large agricultural building, but its use would betray an impact different to that of such a building. There would be a formal parking area adjacent to it on which it is likely that vehicles would be present more frequently than with respect to both an agricultural use or the current use, and lighting within and around a dwelling would almost certainly be greater than if it was in either of those uses. In addition, there would

² 25/00547/FL

be likely to be domestic paraphernalia associated with the garden area and some means of boundary enclosure. There is no reference to individual dwellings being characteristic of the landscape area and compared to what currently exists on the site there would be a material difference in terms of the impact on the landscape.

16. Whilst there is some existing screening present, in particular from Cowley Lane, it is likely that this screening would be lesser in those months when trees are not in leaf. In any event, whether there is an impact on the landscape is not directly dependent on the visibility of the proposed development. The landscape designation covers a much larger area of land, and its characteristics are defined by factors such as the landform, natural features and built development. From the information that is before me, the proposal would not be characteristic of the wider landscape and would result in harm to it.
17. However, Policy SDC3 of the LP states that proposals for new development will only be permitted where they would not cause significant harm in landscape terms. The harm in this case would be localised and mitigated to some degree by the design of the proposed dwelling, its replacement of existing stable buildings and by screening of the appeal site. As noted above, there has also been a similarly designed dwelling permitted very close to the appeal site, also resulting from the replacement of stables. There would seem to be a reasonable likelihood that that dwelling will be built out and if so it would become part of the character of the AMES. These factors mean that the harm would be below the bar of significant harm to the AMES and thus that no conflict with Policy SDC3 of the LP would arise.
18. Policy SS9 of the LP requires that development respects the form, scale and character of the landscape, Policy SDC12 of the LP requires development to respond positively to local character and context and Policy EN2 of the NP requires development proposals to contribute to the protection, maintenance and enhancement of the local landscape. There is therefore some apparent tension in the policies of the development plan in that Policy SDC3 allows for there to be harm, including harm to the AMES, as long as it is not significant harm. I have treated Policy SDC3 as the primary policy against which to assess the proposed development, as it directly references the AMES.

Other Considerations

19. The proposal would be delivered as a self-build dwelling and a Unilateral Undertaking has been provided securing it as such. There is very limited evidence provided by either main party relating to the supply of self-build dwellings in the district and whether or not the Council is meeting its legal obligations. There would also be the more general benefit in that the proposal would boost the supply of housing. Whilst I am mindful of the weighting set out in Policy HO7 of the Framework, in the absence of evidenced accommodation needs of the community being provided, these are considerations to which I afford moderate weight in favour of the proposed development. There appears to be some potential for ecology enhancement on the site as a result of the proposed development, and this too carries moderate weight in its favour.
20. The appellant contends that there would be a visual improvement as a result of the proposed development, in that buildings and structures would be consolidated and that the overall appearance of the appeal site would be improved. However, what

exists at present are structures typical of rural countryside locations, and I have found that there would be some harm to the landscape as a result of the appeal development. I do not consider that there would be a betterment in terms of Green Belt openness from the proposed consolidation, given the size of the proposed dwelling. There is no substantive evidence provided to demonstrate that there would be a reduction in traffic as a result of the proposed development. I do not therefore weigh these considerations in favour of the proposed development.

21. I do not doubt that the proposed dwelling would provide a high standard of housing amenity for future occupiers. Furthermore, the proposal is of a good design, and it would not have an adverse impact on the living conditions of the occupiers of existing dwellings in the locality. However, these should be prerequisites of any scheme, and thus they weigh neutrally in the planning balance.

Planning Balance & Conclusion

22. The Framework at Policy GB6 paragraph 2 states that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. Such circumstances will not exist unless the potential harm to the Green Belt by reason of inappropriateness and any other harm resulting from the proposed development, is clearly outweighed by other considerations. In making this assessment, substantial weight should be given to the harm to the Green Belt which would be caused, including harm to its openness.
23. The proposal would be inappropriate development in the Green Belt and would result in harm to openness, albeit below the threshold of substantial harm. There would be a neutral impact on the Green Belt purpose GB2e if existing buildings were lawful and they were removed. There would be some harm to the landscape, although this would not be significant harm and it would not be in conflict with the most relevant development plan policy.
24. Whilst there are other considerations identified to which I have given moderate weight in favour of the appeal proposal, they do not clearly outweigh the harm to the Green Belt. Consequently, the very special circumstances necessary to justify the development do not exist.
25. For the reasons given above, I conclude that the development conflicts with the policies of the Framework where they seek to protect the Green Belt. Therefore, the appeal should be dismissed.

Graham Wraight

INSPECTOR